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San Jose police head off multimillion-dollar abuse verdict



By **HOWARD MINTZ** | Mercury News, Bay Area News Group

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In the latest twist in a family's 10-year legal battle with San Jose police, a federal appeals court on Tuesday officially wiped out a multimillion-dollar jury verdict in a lawsuit alleging officers illegally seized three young children and placed them in protective custody.

The ruling set aside what is believed to be one of the largest judgments against the police department in recent history, determining that a federal jury's \$3.25 million verdict in 2011 was excessive. The 9th U.S. Circuit Court of Appeals agreed with the trial judge, who set aside the damages and determined that a new trial was warranted — a second jury in 2012 awarded the family about \$210,000 in damages, prompting an appeal of the decision to retry the first, larger verdict.

The 9th Circuit found that, in particular, the original jury verdict, which included a harsh judgment for punitive damages, had to be retried to reassess what San Jose police should pay. The jury had determined that detective William Hoyt and Sgt. Craig Blank violated the constitutional rights of Tracy Watson, Renee Stalker and their children after the officers entered their home without a warrant in 2005 and seized the children, who were kept from their parents for more than a year.

The family still prevailed in much of their case but will come away with far less money from the lawsuit.

“(The) officers’ conduct, while reckless, did not rise to the level of reprehensibility that would justify the amount of punitive damages awarded in the first trial,” Judge Richard Clifton wrote for the three-judge panel.

On June 29, 2005, Hoyt, Blank, five other police officers and county social workers came to the family’s home on Braden Court and entered without a search warrant, looking into concerns about sexual abuse. The couple’s 3-year-old autistic son and an infant boy were home with their grandmother, and city officials said police could not reach the mother — who was in the hospital for surgery — and thought Watson was with their 8-year-old daughter. So they placed the boys into the custody of county child protective services, and then did the same with the girl the next day.

At the time, police had become alarmed by the strange sexual behavior exhibited by the family’s daughter, and the father’s lack of cooperation during their abuse investigation. But the family argued the girl had never told investigators she had been molested, and there was no evidence of abuse. Watson denied the girl had ever done anything sexual, maintaining he was targeted because he had hired an attorney after a feud with the school district.

At the time, a San Jose judge ruled the officers acted correctly in taking the kids. It wasn’t until the family moved to Napa County in 2006 — nearly 1½ years after the initial seizure — that social workers there reviewed the case and quickly returned the children to the family, according to the family’s lawyers.

The case against the city, however, went to trial four years ago, with jurors unanimously deciding that the officers did not have enough evidence to justify taking the kids and entering the home without a search warrant.

The jury found that the officers had violated the family's Fourth Amendment rights against unreasonable search and seizure, and their 14th Amendment rights against government prohibiting "life, liberty or property" without taking proper measures. Jurors awarded financial penalties plus \$2 million in punitive damages, which are designed to punish defendants for intentional wrongdoing.

"It's the most horrific thing (that) no parent should ever have to go through, no child should ever have to go through," Watson, a marketer who now lives in Napa, told this newspaper after the verdict. The "police charging into your house, stealing your kids."

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